

Amendment No. 1 to SB1021

White
Signature of Sponsor

AMEND Senate Bill No. 1021

House Bill No. 998*

by deleting all language after the enacting clause and substituting instead the following:

SECTION 1. Tennessee Code Annotated, Section 49-7-1802, is amended by deleting subdivision (5) and by deleting subdivision (2) and substituting instead the following:

(2) "Contract" means an agreement for the acquisition by purchase, lease, or barter of property or services between a foreign source and a public or private institution of higher education for the direct benefit or use of either of the parties;

SECTION 2. Tennessee Code Annotated, Section 49-7-1803, is amended by deleting "An institution" and substituting "A public institution of higher education".

SECTION 3. Tennessee Code Annotated, Section 49-7-1804, is amended by deleting the section and substituting instead the following:

(a) A public or private institution of higher education shall not accept a gift from a foreign source or enter into a contract with a foreign source if the institution believes that doing so would threaten:

- (1) The integrity of the institution's research, instruction, or operations;
- (2) The institution's intellectual property rights;
- (3) The protection of confidential information; or
- (4) The safety and security of the institution, the institution's personnel

and students, this state, or the United States.

(b)

(1) If a public institution of higher education receives a gift from a foreign source valued at more than ten thousand dollars (\$10,000), then the institution must disclose the following information with respect to the gift:

(A) The dollar value of the gift;

(B) The name and national affiliation of the foreign source funding the gift;

(C) The department, college, school, or other business unit of the institution to which the gift was made;

(D) The date the gift was received; and

(E) A brief description of the gift.

(2) If a private institution of higher education receives a gift from a foreign source designated by the United States department of state as a country of particular concern that is valued at more than fifty thousand dollars (\$50,000), then the institution must disclose the following information with respect to the gift:

(A) The dollar value of the gift;

(B) The name and national affiliation of the foreign source funding the gift;

(C) The department, college, school, or other business unit of the institution to which the gift was made;

(D) The date the gift was received; and

(E) A brief description of the gift.

(c)

(1) If a public institution of higher education enters into a contract with a foreign source valued at more than ten thousand dollars (\$10,000), then the institution must disclose the following information with respect to the contract:

(A) The dollar value of the contract;

(B) The name and national affiliation of the foreign source entering into the contract with the institution;

(C) The department, college, school, or other business unit of the institution that benefits from the contract;

(D) The effective date and termination date of the contract; and

(E) A brief description of the terms of the contract.

(2) If a private institution of higher education enters into a contract with a foreign source designated by the United States department of state as a country of particular concern that is valued at more than fifty thousand dollars (\$50,000), then the institution must disclose the following information with respect to the contract:

(A) The dollar value of the contract;

(B) The name and national affiliation of the foreign source entering into the contract with the institution;

(C) The department, college, school, or other business unit of the institution that benefits from the contract;

(D) The effective date and termination date of the contract; and

(E) A brief description of the terms of the contract.

(d)

(1) If a public institution of higher education receives multiple gifts from foreign sources affiliated with the same foreign government, and each of the gifts is valued at ten thousand dollars (\$10,000) or less, but the aggregate value of the gifts is more than ten thousand dollars (\$10,000), then all of the gifts must be disclosed in accordance with subdivision (b)(1).

(2) If a private institution of higher education receives multiple gifts from foreign sources affiliated with the same foreign government, and each of the gifts is valued at fifty thousand dollars (\$50,000) or less, but the aggregate value of

the gifts is more than fifty thousand dollars (\$50,000), then all of the gifts must be disclosed in accordance with subdivision (b)(2) if the foreign government with which the foreign sources are affiliated is the government of a country designated by the United States department of state as a country of particular concern.

(e)

(1) If a public institution of higher education enters into multiple contracts with foreign sources affiliated with the same foreign government, and each of the contracts is valued at ten thousand dollars (\$10,000) or less, but the aggregate value of the contracts is more than ten thousand dollars (\$10,000), then all of the contracts must be disclosed in accordance with subdivision (c)(1).

(2) If a private institution of higher education enters into multiple contracts with foreign sources that are affiliated with the same foreign government, and each of the contracts is valued at fifty thousand dollars (\$50,000) or less, but the aggregate value of the contracts is more than fifty thousand dollars (\$50,000), then all of the contracts must be disclosed in accordance with subdivision (c)(2) if the foreign government with which the foreign sources are affiliated is the government of a country designated by the United States department of state as a country of particular concern.

(f) By July 31 each year, each public institution of higher education and private institution of higher education shall prepare a foreign gifts and contracts disclosure report that includes the information required to be disclosed pursuant to this section, and submit the report to the comptroller of the treasury and the department of safety for review. Each report must disclose the foreign gifts received and the foreign contracts entered into during the fiscal year ending on June 30 prior to the reporting deadline. If an institution does not have a gift or contract subject to disclosure pursuant to this section, then the institution must submit a foreign gifts and contracts disclosure report stating that the institution does not have a gift or contract subject to disclosure.

(g) The comptroller shall make the reports submitted pursuant to subsection (f) publicly available on the comptroller's website.

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.